

14. *Rodriguez v. Ramirez, et al*, Case No. CIVSB2603109

Defendant's Motion to Strike

7/16/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** the matter so that movant may satisfy the meet-and-confer requirements.

Prior to a motion to strike, a party is required meet and confer in person or by telephone or by video conference with the party who filed the pleading for purposes of "determining whether an agreement can be reached that would resolve the objections to be raised in the motion to strike." (Code Civ. Proc. § 435.5(a) [motion to strike].)

Here, the supporting declaration does not confirm compliance with the meet-and-confer requirements. (See Jozana Decl.) Rather, the declaration simply unilaterally concludes that counsel "attempted to meet and confer, and it attaches a copy of an email. (Jozana Decl., ¶¶4-5 & Exh. B.) No statements were provided setting forth the actual attempt to meet and confer "in person or by telephone or by video conference" that might constitute that purported attempt. Thus, the Court would continue the matter to allow a supplemental declaration showing compliance. Defendant will file a supplemental declaration at least ten court days before the next hearing.

15. *Keating II v. Loma Linda University Medical Cntr., et al*, Case No. CIVSB2507211

Defendant's Demurrer to First Amended Complaint

7/26/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** the matter so that movant may satisfy the meet-and-confer requirements.

Prior to a demurrer, a party is required meet and confer in person or by telephone or by video conference with the party who filed the pleading for purposes of "determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41(a) [demurrer].)

Here, the supporting declaration does not confirm compliance with the meet-and-confer requirements. (See Demers Decl.) Rather, the declaration sets out that a meet-and-confer letter and, later, email went out with no response. (Demers Decl., ¶¶3-4.) It fails to indicate any attempt to contact in person, by telephone, or by video or any frustrated attempt at such compliance. Thus, the Court would continue the matter to allow a supplemental declaration showing compliance. Defendant will file a supplemental declaration at least ten court days before the next hearing.
